

10:00 a.m. Calendar

MATTER OF SILVEIRA

21PR8357

OBJECTORS' MOTION FOR SUMMARY JUDGMENT

This matter includes four consolidated probate petitions and one related civil complaint and a convoluted factual and procedural history.

Now before the Court is a Motion for Summary Judgment brought by “Objectors” Francille Elaine Peters, Individually, as Beneficiary, as Executor, and as Co-Trustee; and David J. Silveira, Jr., Individually and as Personal Representative (hereinafter “Objectors.”) Rodd Peters has filed a notice of joinder in the Motion. For ease of reference, Manuel Silveira (“Manuel”) and Audrey Petricevich (“Audrey”) are referred to collectively as “Opposing Parties.”

Both parties objected to various pieces of evidence brought by the other parties. However, none of the objected-to evidence was material to the disposition of the motion, and accordingly the Court does not rule on any of the evidentiary objections to evidence. (Code Civ. Proc. §437(q).)

I. Background

The parties recite numerous facts which are largely irrelevant to the motion at hand. Accordingly, the Court will set forth only those facts material to the Objector’s motion.

Carolyn Silveira (“Carolyn”) ¹ and David J. Silveira Sr. (“David, Sr.”) were a married couple with five children: Audrey Petricevich (“Audrey”), Manuel Silveira (“Manuel”), Francille Elaine Peters (“Francille”), David Silveira Jr. (“David Jr. ”) and “Dominick Silveira (“Dominick”).

¹ Due to the common surnames, first names will be used for all parties. No disrespect is intended.

In 1969, David Sr. and Carolyn purchased an 80-acre parcel of real estate (the “80 Acre Parcel”) as a married couple in joint tenancy (UMF 1.) Approximately 10 years later, in 1979, they purchased an adjoining 10-acre parcel in the same manner (the “10-acre Parcel”) (UMF 2.) For purposes of this Motion, the parties refer to the combined 10-acre Parcel and the 80-acre parcel as the “Ranch.” (UMF 3.)²

Carolyn suffered a heart attack in 2004. (UMF 5.) By 2008, David Sr. was suffering from Chronic Obstructive Pulmonary Disease (“COPD”). (*Ibid.*) The parties dispute the ultimate effect that these health setbacks had on their ability to care for and maintain the Ranch. (UMF 5.)

It is undisputed that in 2008, Manuel returned to the family home and began living in the rental property on the Ranch full-time. (UMF 6.) It is also undisputed that Manuel would assist in maintaining the farm, raising his and his parents’ cattle, and assisting in paying Ranch-related bills. (UMF 6.) Manuel also was in the Air Force Reserves and had to travel frequently between California and Texas. (Opp. UMF 6.) By moving back to California, Manuel was also limited in his ability to continue his work as a pharmacist because he was only licensed to practice in Texas. (Declaration of Manuel Silveira (“Manuel Decl.” ¶ 13.) There is no significant evidence that any of the other children were regularly present at the Ranch or engaged in work thereon.

Manuel asserts that in consideration for his agreement to return to the Ranch and care for the property, his parents promised that the Ranch would be his. (Opp UMF 7; Manuel Decl. ¶ 11.) Objectors contend that such promise, if made, was done behind Carolyn’s back and without her consent. (UMF 7.)

In 2016, Carolyn created a separate trust (“Carolyn’s Trust”) (UMF 8.) She then purportedly executed several quitclaim deeds related to the Ranch. (UMF 9.) Specifically, Carolyn first deeded her community interest in the properties to herself as separate property and then to her Trust. (*Ibid.*)³ The parties dispute the legitimacy of the signatures on the various quitclaim deeds. (Opp UMF 9, 10.) There does not appear to have been any formal gift of the Ranch by Carolyn to Manuel. (UMF 12.)

In 2019, David Sr. met with an attorney to discuss his own estate plans. At some point, David Sr. then executed a holographic will that left all his assets to both Audrey and Manuel. (UMF 15.) In 2020, David Sr. executed his own separate trust (“David Sr.’s

² In 1987, David Sr. and Carolyn, along with their five children, purchased an adjoining 120 acre parcel (the “120-Acre Parcel.”) David Sr. and Carolyn together owned a 1/6 interest in the 120 Acre Property. (*Ibid.*)

³ Carolyn also executed similar deeds related to the 120-acre Parcel, where she deeded her 1/12th interest in the parcel to herself as separate property and then again to her Trust. (UMF 10.)

Trust”) (UMF 16.) At that time, David Sr. transferred his interests in the Ranch to the Trust. (UMF 17.) Pursuant to David Sr.’s Trust, all of his assets would be split between Audrey and Manuel (UMF 18.) The parties dispute whether the assets were required to be split equally or whether it was along whatever terms Manuel and Audrey agreed. (Opp UMF 18.)

In December 2019, Manuel had an appraisal done on the Ranch. The appraisal summary references explicitly that the “percentages should aid you during your purchase negotiations.” (UMF 24.) On March 2, 2020, Manuel, through his attorney, Mr. Sproul, sent a letter directly to Carolyn and her Trust, offering to purchase her half interest in the Ranch for \$345,000 and her interest in another parcel for \$25,000. (UMF 27.)

Carolyn filed for Divorce from David Sr. on February 10, 2020. During the divorce proceedings, David Sr. filed paperwork which reiterated Manuel’s interest in purchasing the Ranch. (UMF 29.)

On June 30, 2020, Manuel signed an affidavit stating:

“My understanding that my labor and financial expenses were going towards improving the ranch in advance of me ultimately purchasing the ranch from Mom and Dad. I saw this as an investment in my future ownership of the ranch and a way to demonstrate my dedication to keeping the ranch in the family.” (UMF 30.)

Manuel, however, asserts that this statement is taken out of context because he Manuel understood that he was “purchasing” the ranch from his parents with his time, labor, and investment, consistent with their agreement. (Opp UMF 30.) The affidavit does not state anything about an agreement for Carolyn and/or David Sr. to gift or devise the Ranch to Manuel upon their death. (UMF 31.)

In September 2020, David Sr. responded to discovery requests in the divorce proceedings and stated that there were reimbursements owed to Audrey and Manuel when asked about community reimbursements and credits. (UMF 32.) However, the discovery requests did not indicate that Ranch is owed to Manuel by gift, devise, or even as a form of reimbursement. (*Ibid.*)

The divorce was never finalized, as it was dismissed when Carolyn passed away on September 21, 2020. (UMF 33.) Francille then began the probate process for Carolyn’s estate as personal representative and Carolyn’s pour-over will was eventually accepted by the Court. (UMF 34.) In October 2020, Francille caused a Declaration to Establish Fact of Death of Trustee to be recorded with the County Recorder’s office. Francille then

held Carolyn's Trust's interest in all the properties as Trustee of Carolyn's Trust. (UMF 35.)

On May 5, 2021, David Sr. applied for an Elder Abuse Restraining order against Francille and against David Jr. (UMF 36.) The statement did not recite an agreement between Carolyn and Manuel regarding any transfer of the Ranch. However, Manuel argues that this was irrelevant as the statement included information on property transfers after 2016 and the original agreement about the Ranch was made in 2008. (*Ibid.*)

On March 17, 2021, David Sr. filed a Verified First Amended Petition for (1) Recovery of Trust Property Pursuant to Probate Code § 850, (2) Conversion, (3) Quiet Title, and (4) Partition Action. (UMF 39.) On November 2, 2021, David passed away before his Petition could be determined. His daughter Audrey was then appointed executor of his estate and successor Trustee of his trust. Audrey continues to pursue David's Petition. (UMF 40.)

In March 2022, on behalf of Francille and David Jr., attorney Eurik O'Bryant, obtained litigation guarantees on the ownership of the various properties. (UMF 43-45.) The parties dispute the relevance and admissibility of those third party assessments.

Francille continued to probate Carolyn's estate. On September 20, 2021, Manuel filed a creditor's claim against Carolyn's Estate based on his alleged oral agreement between himself and his parents that Carolyn and David Sr. would leave him their interests in the 10-acre Parcel and the 80-acre Parcels. (UMF 47.) Ultimately, Manuel valued his claim at \$508,110.00. (*Ibid.*)

On April 14, 2022, Manuel filed his First Amended Petition to (1) Determine Ownership of Property and Direct Holder(s) to Transfer Title (Probate Code § 850, et seq.), (2) Breach of Oral Contract, and (3) Promissory Estoppel ("Manuel's Petition"). (UMF 48.)

II. Legal Standard

Summary judgment is proper when there are no triable issues of material fact, and the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc., § 437c(c).)

As the moving parties, Objectors have the initial burden to show Manuel's claims have no merit by showing either (1) that one or more elements of each cause of action cannot be established or (2) there is a complete defense to the claims. (Code Civ. Proc., § 437c(p)(2); see also *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849-850.) If Objectors meet that burden, then the burden shifts to Manuel to show that a triable

issue of material fact exists as to the element or defense at issue. (*Ibid.*) In ruling on a motion for summary judgment, the court must view the evidence in the light most favorable to the opposing party. (*Aguilar, supra*, 25 Cal.4th at p. 843.)

To meet this burden of showing a cause of action cannot be established, a defendant must show not only “that the plaintiff does not possess needed evidence” but also that “the plaintiff cannot reasonably obtain needed evidence.” (*Aguilar, supra*, 25 Cal.4th at p. 854.) It is insufficient for the defendant to merely point out the absence of evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891.) The defendant “must also produce evidence that the plaintiff cannot reasonably obtain evidence to support his or her claim.” (*Ibid.*)

If the evidence is in conflict, the factual issues must be resolved by trial.” (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 839.) Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. [Citation.] Nor may the trial court grant summary judgment based on the court’s evaluation of credibility. [Citation.]” (*Id.* at p. 840.)

III. Discussion

A. Breach of Oral Contract

“The elements of a breach of oral contract claim are the same as those for a breach of written contract: a contract; its performance or excuse for nonperformance; breach; and damages.” (*Stockton Mortgage, Inc. v. Tope* (2014) 233 Cal.App.4th 437, 453.)

Objectors argue that Manuel cannot state a claim for breach of oral contract because there was no contract. In support of this contention, Objectors rely on the fact that neither David Sr. nor Manuel ever attempted to put the alleged promise of gifting the Ranch in writing and that all existing writings state nothing about any gift.

In opposition, Opposing Parties argue that the existence of inconsistent estate planning documents in 2016 and 2020 do not prove that the 2008 agreement did not exist. According to Manuel, in or around 2004, his parents began telling him that the Ranch was in disrepair and that they did not have money to repair it. (Manuel Decl. ¶ 9.) After returning from Iraq in 2006, Manuel returned to his full-time job as a pharmacist and reservist in Texas. (*Id.* ¶ 10.) However, according to Manuel, at that time his parents also implored him to return to California and help manage the Ranch. (*Id.* ¶ 11.) He avers that his parents promised him that in exchange for his giving up his life in Texas,

moving to California, and assuming significant responsibilities at the Ranch, he would be given the Ranch. (*Id.* ¶ 11.) It is further undisputed that Manuel did in fact give up his pharmacy career in Texas, returned to California (where he was not a licensed pharmacist and therefore had limited job opportunities) and dedicated substantial time and money to the upkeep and care of the Ranch. (Opp UMF 17-23.)

While Objectors produce substantial evidence of later written agreements that might contradict Manuel's position, they do not produce any evidence that contradicts Manuel's statements about the reasons, and alleged promises, behind his move to California in or around 2008. While undoubtedly self-serving, that alone does not render Manuel's declaration inadmissible. (*Oiye v. Fox* (2012) 211 Cal.App.4th 1036, 1050 ["modern courts have recognized that all evidence proffered by a party is intended to be self-serving in the sense of supporting the party's position"].) Nor does the Court weigh in on Manuel's credibility. (*Lake v. Jackson* (1961) 191 Cal.App.2d 372, 375["resolution of conflicts and the determination of the credibility of witnesses is for the trier of fact"].)

Objectors have not carried their burden to show that Manuel cannot establish the existence of an oral agreement with his parents. Accordingly, **the motion for summary judgment/adjudication as to the breach of oral contract claim is denied.**

B. Promissory Estoppel

The elements of a promissory estoppel claim are: 1) a promise; 2) reliance by the party to whom the promise is made, 3) the reliance must be both reasonable and foreseeable; and 4) resulting injury. (*US Ecology, Inc. v. State of California* (2005) 129 Cal.App.4th 887, 901.) To be binding, a promise must be "definite enough that a court can determine the scope of the duty and the limits of performance must be sufficiently defined to provide a rational basis for the assessment of damages." (*Garcia v. World Savs. Bank, FSB* (2010) 183 Cal.App.4th 1031, 1045.)

Objectors argue that, here, the alleged promise is not clear and unambiguous. In support, they make two arguments. First, they assert that the alleged promise is contradicted by later written documents. However, as stated above, the fact that Carolyn and David Sr. may have attempted to later change their agreements, does not prove as a matter of law that they did not make earlier agreements in or around 2008. Second, Objectors argue that because Manuel also benefitted from maintaining the Ranch, there was no contract. They do not, however, explain how the mere fact that Manuel may have benefitted from ensuring the upkeep of the Ranch would undermine the existence of an oral agreement.

Objectors' entire argument was based on the lack of a clear promise, and the other elements of promissory estoppel were not raised or discussed. Accordingly, as they have not carried their burden to show that Manuel cannot establish a claim for **promissory estoppel, their motion as to this claim is denied.**

For the same reason, the motion for summary judgment on the Probate Code section 850 claim is also denied. Objectors have not carried their burden to show that Manuel cannot produce evidence supporting his claims based on the alleged oral promise.

D. David Sr.'s Quiet Title Claim

Objectors also move for summary judgment on David Sr.'s Petition which seeks to quiet title on all parcels and to partition the 120-acre parcel based on the ownership interests of all. As set forth in the ruling on Objectors' earlier Motion for Judgment on the Pleadings, and as detailed herein, there remain too many issues of material fact regarding ownership of the properties for summary judgment to be appropriate.

Accordingly, **summary judgment on David Sr.'s claims is also denied.**

The clerk shall provide notice of this ruling to the parties forthwith. Opposing Parties to prepare a formal Order in compliance with Rule of Court 3.1312 in conformity with this Ruling.

MATTER OF SILVEIRA

21PR8357

DEFENDANT’S MOTION TO BIFURCATE TRIAL

This matter includes four consolidated probate petitions and one related civil complaint and a convoluted factual and procedural history.

Now before the Court is a motion to bifurcate brought by Objectors Francille Elaine Peters, Individually, as Beneficiary, as Executor, and as Co-Trustee; and David J. Silveira, Jr., Individually and as Personal Representative (hereinafter “Objectors.”)

I. Background

The facts of the multiple interrelated cases have been set forth in numerous pleadings and court rulings. Accordingly, the Court will only give a brief recitation of the facts relevant to the motion to bifurcate.

Carolyn Silveira (“Carolyn”)⁴ and David J. Silveira Sr. (“David, Sr.”) were a married couple with five children: Audrey Petricevich (“Audrey”), Manuel Silveira (“Manuel”), Francille Elaine Peters (“Francille”), David Silveira Jr. (“David Jr. ”) and “Dominick Silveira (“Dominick”).

In 1969, David Sr. and Carolyn purchased an 80 acre parcel of real property (“80 Acre Property”.) In 1979, David Sr. and Carolyn purchased an adjoining 10 acre parcel (“10 Acre Property”.) Both properties were held by the married couple as “joint tenants.”

In 1987, David Sr. and Carolyn, along with all five children, purchased an adjoining 120 acre parcel with each to hold a 1/6 interest, except David and Carolyn who jointly held a 1/6 interest. (“120 Acre Property.”)

In 2016, Carolyn created the Carolyn L. Silveira Separate Property Revocable Trust (“Carolyn’s Trust”) and purported to transfer her interests in the three properties therein. In January of 2020, David Sr. created his own trust (“David Sr. Trust”) and also

⁴ Due to the common surnames, first names will be used for all parties. No disrespect is intended.